

# 19STCV01092 19STCV01092

County: los-angeles

Division: Civil Law and Motion

Department: SWA

Hearing date: 2026-09-23

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Case Number: 19STCV01092 Hearing Date: September 23, 2026 Dept: SWA

Tentative Ruling

Judge Eric C. Taylor

Torrance/Department A

Hearing Date: Wednesday,  
September 23, 2026

Case Name: Lan v. Eshak, et  
al.

Case No.: 19STCV01092

Proceedings: (1) PLAINTIFF YONGTONG

LAN'S MOTION FOR AN AWARD AND ENTRY IN JUDGMENT OF ATTORNEYS PURSUANT TO PENAL  
CODE §§ 496(c) AND 502(e)(2) AND CODE OF CIVIL PROCEDURE §2033.420(a) AGAINST  
DEFENDANT WASEM ESHAK FOR \$684,809.88

(filed 8/17/26)

(2)

DEFENDANT WASEM ESHAK'S MOTION FOR ATTORNEY'S FEES IN SUM OF \$343,954.50 (filed  
8/21/26)

Moving Parties: (1) Plaintiff Yongtong

Lan

(2) Defendant Wasem Eshak

Responding

Party: (1) Defendant

Wasem Eshak

(2) Plaintiff Yongtong Lan

Notice: OK

Rulings:

Defendant Wasem

Eshak's Motion for Attorney's Fees in Sum of \$343,954.50 is DENIED (without prejudice to the bankruptcy trustee's right to file a new motion for attorney's fees as the real party in interest).

Plaintiff Yongtong

Lan's Motion for an Award and Entry in Judgment of Attorneys Pursuant to Penal Code §§ 496(c) and 502(e)(2), and Code of Civil Procedure §2033.420(a) Against Defendant Wasem Eshak is GRANTED as follows. The Court awards plaintiff a total attorney fees award of \$672,750.21. Plaintiff is ordered to file and serve a proposed order within five (5) days of this ruling.

## BACKGROUND

In

this contractual fraud action, Plaintiff Yongtong Lan ("Plaintiff") alleges that Defendant Wasem Eshak ("Eshak") and others fraudulently induced him to invest in a start-up pharmacy business, iLabPharma ("iLab"), which he later discovered had become insolvent, wherein he had been defrauded in the amount of \$3,894,000.00.

On

January 14, 2019, Plaintiff filed this action, and on January 27, 2021, filed the operative Second Amended Complaint ("SAC"), asserting causes of action for: (1) intentional misrepresentation – fraud [count 1], (2) negligent misrepresentation [count 1], (3) intentional misrepresentation and deceit – fraud [count 2], (4) intentional misrepresentation – fraud [count 3], (5) concealment and deceit – fraud [count 4], (6) breach of fiduciary duty, (7)

breach of contract [count 1], (8) breach of contract [count 2], (9) violation of penal code § 502 for computer fraud, (10) negligent misrepresentation [count 2], (11) fraud [count 5], (12) conversion, (13) money had and received, (14) unjust enrichment and constructive trust, (15) declaratory relief [count 1], and (16) declaratory relief [count 2].

After a lengthy bench trial, the Court entered judgment in favor of Plaintiff and against Eshak in the amount of \$4,318,286.19 as follows:

a)

\$1,854,000

in damages for the fourth (4th) cause of action for intentional misrepresentation – fraud [count 3].

b)

\$1,501,753.80

in damages for the fourteenth (14th) cause of action for unjust enrichment and constructive trust.

c)

\$750,000

as punitive damages for the fourth (4th) cause of action for intentional misrepresentation – fraud [count 3], fifth (5th) cause of action for concealment and deceit – fraud [count 4], sixth (6th) cause of action for breach of fiduciary duty, and twelfth (12th) cause of action for conversion.

d)

\$130,540.39

in damages for false pretense, false representations, and actual fraud under the fifth (5th) cause of action for concealment and deceit – fraud [count 4], sixth (6th) cause of action for breach of fiduciary duty, twelfth (12th) cause of action for conversion, and thirteenth (13th) cause of action for money had and received.

e)

\$61,494 in

treble damages for the twelfth (12th) cause of action for conversion and willful and malicious injury to property.

f)

\$20,498 in

damages for the twelfth (12th) cause of action for conversion for funds misappropriated from iLab.

(6/17/26 Judgment, pp. 2-6.)

The Court also entered judgment in favor of Eshak on some claims, including the seventh (7th) cause of action for breach of contract [count 1] and eighth (8th) cause of action for breach of contract [count 2]. (6/17/26 Judgment, 2:12-15.)

On July

10, 2026, Plaintiff filed a Memorandum of Costs ("MOC") requesting \$296,570.03 in costs. On August 20, 2026, the Court awarded Plaintiff those costs after denying Eshak's motion to strike the MOC.

On July 17, 2026, Plaintiff filed a

Motion for New Trial, which was opposed and which the Court denied on August 20, 2026.

On

August 17, 2026, Plaintiff filed the instant "Motion for an Award of and Entry in Judgment of Attorneys Pursuant to Penal Code §§ 496(c) and 502(e)(2) and Code of Civil Procedure §2033.420(a) Against Defendant Wasem Eshak for \$684,809.88." Eshak filed his opposition on September 10, 2026, and Plaintiff filed his reply on September 16, 2026.

On

August 21, 2026, Eshak filed the instant "Motion for Attorney's Fees in Sum of \$343,954.50." On September 10, 2026, Plaintiff filed his opposition, and on September 16, 2026, Eshak filed his reply.

## LEGAL STANDARD

"[T]he fee setting inquiry in

California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. .... The reasonable hourly rate is that prevailing in the community for similar work." (PLCM

Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (PLCM) [internal citations removed].)

““It

is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court....

[Citations.] The value of legal services performed in a case is a matter in which the trial court has its own expertise. [Citation.] The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. [Citations.] The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.’ [Citation.]” (PLCM, supra, 22 Cal.4th at p. 1095.)

““The

“burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable. [Citation.]”” (Gonzalez v. Santa Clara County Dept. of Social Services (2017) 9 Cal.App.5th 162, 169.)

#### ESHAK’S MOTION FOR ATTORNEYS’ FEES

Eshak moves for an order requiring Plaintiff to pay \$343,954.50 in attorney’s fees to the Marcarian Law Firm, arguing that Eshak was “the ‘prevailing party on the contract’ ... on two separate contracts – the March 2, 2016 Shareholder Agreement [“SHA”] (the Seventh Cause of Action) and the May 12, 2017 Stock Purchase Agreement [“SPA”] (the Eighth Cause of Action).” (Eshak’s Motion, p. 2:5-11.) The motion is brought under Civil Code section 1717 and the prevailing-party attorney-fee provisions of the SHA and the SPA. (Id. at p. 2:14-18.)

However, Eshak has conceded Plaintiff’s claim that a bankruptcy trustee is the real party in interest to seek such fees based on the following facts. On October 7, 2025, while this action was pending, Eshak filed a voluntary Chapter 7 petition. (Plaintiff’s Opposition, p. 2:21-23) The case was converted to Chapter 11 on January 16, 2026, and reconverted to Chapter 7 on July 30, 2026. (Id. at p. 2:24-27.) Nancy J. Zamora is the current

Chapter 7 Trustee. (Id. at p. 3:1-3.) “The widely accepted rule is that after a person files for bankruptcy protection, any causes of action previously possessed by that person become the property of the bankrupt estate.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 1001.) Indeed, defense counsel concedes that “any fee the Court may award should be for the benefit of his bankruptcy estate and not the Marcarian Law Firm.” (Further Supplemental Declaration of Armond Marcarian, filed September 16, 2026, ¶ 2.)

Therefore, in his reply, Eshak asks “the Court to defer ruling on the motion for a period of 30-60 days to allow the trustee to consider whether to seek attorney’s fees on behalf of Mr. Eshak. If the Court, however, is not inclined to defer ruling on the fee motion and is inclined to deny Mr. Eshak’s fee request, Mr. Eshak respectfully requests the Court that the denial be without prejudice.” (Reply, p. 5:4-8.)

Eshak’s reply does not make clear whether the trustee will incorporate the arguments Eshak made in his moving papers or merely substitute for Eshak with respect to the motion. (See Reply, Marcarian Decl., ¶ 6 [““The Trustee inquired whether the Court would consider a continuance of 30-60 days to allow the Trustee to consider certain matters relevant to the Trustee’s decision to pursue a claim for fees on behalf of Mr. Eshak”].)

Therefore, the Court’s tentative order is to deny the motion without prejudice rather than grant a continuance. This ruling prevents confusion regarding notice and the briefing schedule for the trustee’s motion.

For those reasons, Eshak’s motion is DENIED without prejudice.

#### PLAINTIFF’S MOTION FOR ATTORNEYS’ FEES

Plaintiff moves for total attorneys’ fees of \$688,202.13 (which includes fees for this motion) pursuant to Section 496(c) of the Penal Code (“PC”), Section 502(e)(2) of the PC, and Section 2033.420(a) of the Code of Civil Procedure (“CCP”). (Reply, Supplemental Declaration of Rodney Lewin, ¶ 6; Notice of Motion, p. 2:6-15.)

Request for

## Judicial Notice

Plaintiff asks the Court to take judicial notice of several documents filed in this case, including the Court's Final Decision/Statement of Decision, Judgment, the parties' exhibits, and declarations of Plaintiff's counsel Allyson P. Wittner (Wittner), and stipulations. (Request for Judicial Notice, filed August 17, 2026, pp. 1:20-3:10.)

The request for judicial notice is GRANTED. (Evid. Code, § 452, subd. (d) [allowing a court to take judicial notice of court records]; but see also *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882 ["while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files" (italics removed)]).)

## Evidentiary Objections

Plaintiff's objections to the declaration of defense counsel Teddy T. Davis (Davis) are OVERRULED. (Evidentiary Objections, filed September 16, 2026, pp. 1:26-2:7 [asserting six objections to Paragraphs 5 to 9 of the declaration and corresponding exhibits for lack of foundation].)

## CCP 2033.420(a) Attorney Fees

Plaintiff seeks CCP 2033.420(a) attorney fees of \$2,035.83, arguing that Eshak failed to admit the genuineness of certain documents and/or the truth of certain matters when requested, and that Plaintiff proved the genuineness of those documents and/or the truth of those matters at trial. (Lan Motion, p. 16:1-6.)

Eshak does not challenge those attorney fees.  
(See Opposition, pp. 18:9-19:8.)

Therefore, plaintiff's request for CCP 2033.420(a) attorney fees of \$2,035.83 is GRANTED.

## PC 496(c) Attorney Fees

Plaintiff's Notice of Motion stated that Plaintiff seeks PC 496(c) attorney fees of \$618,766.16 as the prevailing party under the SAC's twelfth (12th) cause of action for conversion. (Lan Motion, p. 15:21-25.) "Penal Code section 496 is entitled 'Receiving or concealing stolen property.' (Pen. Code, § 496.)" (Siry Investment, L.P. v. Farkhondehpour (2020) 45 Cal.App.5th 1098, 1133.) Subdivision (a) makes it a crime to buy or receive any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained. (Ibid.) It also makes it a crime to conceal, sell, or withhold any property from the owner, knowing the property to be so stolen or obtained. (Ibid.) "Subdivision (c) empowers '[a]ny person who has been injured by a violation of subdivision (a)' to 'bring an action for three times the amount of actual damages [he has] ... sustained' as well as for 'costs of suit[ ] and reasonable attorney's fees.' [Citation.]" (Ibid.)

Plaintiff was represented in this action by Law Offices of Rodney T. Lewin ("LORT"), which has submitted redacted but verified billing statements. (Declarations of Rodney T. Lewin and Allyson P. Wittner, filed August 17, 2026, Lewin Decl., ¶ 2; Compendium No. 2, filed August 17, 2026 ("COE No. 2"), Exh. 15 – copies of the redacted billing statements & Exh. 16 – summary of the billing statements.)

The Court finds the billing rates charged reasonable. Attorney Lewin testifies that seven people from his firm worked on Plaintiff's matter: (1) Lewin – who has 50 years of experience (charged \$475-\$500/hour); (2) Attorney Wittner – 37 years of experience (charged \$370-\$425/hour); (3) Attorney Chandler Owen Barlett – 41 years of experience (\$375-\$425/hour); (4) Legal Assistant and Former Attorney Ronald Faulk – 40 years of experience (\$165/hour); (5) Legal Assistant Spencer Lewin – worked in three prior law firms prior to joining LORT (years of experience unspecified) (\$65/hour); (6) Paralegal Daniel Reed – 25 years of experience (\$160/hour); and (7) Legal Secretary/Legal Assistant Cindy Heyen – 4 years of experience (\$60/hour). (Lewin Decl., ¶¶ 6-7, 34, 60, 62, 65, 67.) Eshak's opposition has not challenged the reasonableness of those rates.

Eshak first opposes the Plaintiff's PC 496(c) attorney fees, arguing that "the result obtained under section 496 was limited compared with the litigation as a whole. Specifically, the [5/29/26 Statement of Decision ("SOD")] limited trebling to the \$20,498 that remained after the



Court separately used \$110,042 traced into NextRx to support Count 14 relief. (SOD p. 57.) As a result, the section 496-related line items total less than 2% of the judgment. Rather, the overwhelming monetary recovery came from other claims that did not include fee-shifting rights. [¶] Lan nevertheless assigns \$618,766.16 to section 496. That is 91.9 percent of the \$673,639.46 allocated among the three statutory categories before the supplemental August 17 and estimated hearing amounts. It is also 30.2 times the \$20,498 loss that supplied the section 496 trebling predicate. Those figures do not establish a legal cap. They do show that the proposed allocation is difficult to reconcile with the actual role section 496 played in the result.” (Opposition, p. 11:10-21.)

The Court finds the proportionality argument unpersuasive. “Although the court may consider the amount at issue in the litigation, as well as counsel’s relative success in achieving the client’s litigation objectives in adjusting the lodestar figure, the attorney fee award need not bear any specific relationship to the dollar amount of the recovery.” (Concepcion v. Amscan Holdings, Inc. (2014) 223 Cal.App.4th 1309, 1321.)

In addition, “[i]n challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” [Citations.]” (Vines v. O’Reilly Auto Enterprises, LLC (2022) 74 Cal.App.5th 174, 184.)

Here, for the PC 496 billing entries, Eshak specifically challenges: “Five ... entries, totaling \$1,958.75, [that] are marked ‘No Charge’ in [Plaintiff’s COE No. 2’s] Exhibit 15 but included as amounts billed and sought in Exhibit 16.” (Opposition, Davis Decl., ¶ 8; Opposition, p. 8:23-26.)

Plaintiff’s counsel concedes that inclusion of the “No Charge” and certain unrelated entries (which total \$2,032.75) in the exhibits was a mistake. (Reply, Lewin Decl., ¶¶ 2, 6.)

However, Plaintiff already accounted for the deduction of those entries in his requested attorney fee award of \$688,202.13. (Reply, Lewin Decl., ¶ 6.)

Therefore, Eshak's request to deduct those fees is moot.

Eshak also

challenges the following PC 496 entries: "Eighteen entries totaling \$7,562.92 [that] concern the punitive-damages amount phase, including financial-condition discovery, organization of Eshak's financial records, communications with the punitive-damages expert, and punitive-damages research. ([Plaintiff's COE No. 2] Ex. 15 pp. 409, 412–414; [id.] Ex. 16 pp. 25–26.) [Eshak also challenges] [t]wo entries totaling \$2,590 concern tracing funds into NextRx and obtaining a constructive trust. (Ex. 15 pp. 52; Ex. 16 pp. 3.) Those services concern distinct remedies not necessary to prove section 496 theft." (Opposition, p. 12:12-20; Davis Decl., Exh. B – showing the punitive damages and constructive trust entries that should be excluded from the attorney fee award.)

In reply,

Plaintiff argues "that the natural consequence of his theft of monies from the Secret Bank Account which he funneled to NextRx are an award of punitive damages and imposition of constructive trust — both of which the Court gave Plaintiff." (Reply, p. 9:22-25.)

However, punitive

damages and a constructive trust are not remedies for violating PC 496(c). Instead, the statute "empowers '[a]ny person who has been injured by a violation of subdivision (a) [i.e., a crime of buying or receiving stolen property or property that has been obtained through theft or extortion] ' to 'bring an action for three times the amount of actual damages [he has] ... sustained' as well as for 'costs of suit[ ] and reasonable attorney's fees.' [Citation.]" (Siry Investment, L.P. v. Farkhondehpour, supra, 45 Cal.App.5th at p. 1133.)

Therefore, the

Court grants Eshak's request to deduct \$10,152.92 (i.e., \$7,562.92 for the punitive damages phase plus \$2,590 for the constructive trust phase) from Plaintiff's requested attorney fees under PC 496(c).

Eshak next argues

that the rest of the PC 496(c) attorney fees (i.e., fees for "mixed trial work," "mixed NextRx work," "whole-case pleadings," and "SOD and judgment")

should be reduced by 50 percent, for a total reduction of \$74,910.80 for those items. (Opposition, p. 12:21-25.) In *Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 282, the appellate court stated: "An across-the-board reduction in hours claimed based on the percentage of total time entries that were flawed, without respect to the number of hours that were actually included in the flawed entries, is not a legitimate basis for determining a reasonable attorney fee award" (italics removed). Eshak argues that his proposed 50 percent reduction does not run afoul of that rule because he is proposing that: "The Court should first remove the specifically identified noncompensable and mixed work. Only then should it exercise the separate *Hensley/Chavez* judgment about whether the resulting lodestar is reasonable in relation to the section 496 result. The proposed 50 percent adjustment is [thus] a results-based equitable judgment, not a statistical proxy for unproven hours." (Opposition, p. 13:18-27.)

However, "verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v. Board of Trustees of California State University*, supra, 132 Cal.App.4th at p. 396.)

Here, Plaintiff's counsel, Attorney Wittner, submitted a declaration with the moving papers testifying as follows. "I have reviewed all the billing statements from the very outset of the case in order to select the time that related to the attorney (or litigation assistant) work for which fees are being sought by this motion, i.e. the Secret Bank Account and tracing of stolen funds (Penal Code § 496), RX30 and the August 15, 2017 prescription reversals of approximately 76 prescriptions (Penal Code §502) and the denied Request for Admissions of fact and/or genuineness of documents. (CCP § 2033.420) ('Motion Subject Matter'). .... I have caused to be created the Excell spread sheet ('Fee Worksheet') for this Motion and the Motion Subject Matter fees sought in this Motion, a true and correct copy of which is attached to the Compendium of Exhibits No. 2 as Exhibit '16.'" (Wittner Decl., ¶ 5.)

"In those instances where the Motion Subject Matter work overlapped or was combined with other services [such as, for example, during a deposition, trial or other matters where are other issues other than the Motion Subject Matter were included], I conservatively estimated based on my experience, knowledge and review, and after consultation with Rodney Lewin, the time that is reasonably and conservatively related to the Motion Subject Matter. On

occasion, where the fees included entries covering the Motion Subject Matter and over-lapped with those not included in the Motion and there were several work related entries, I redacted one entry and left the other to account for the time rather than adjust or reduce each, so that there was in essence no charge for the redacted one. .... Thus, the Fee Worksheet sets forth the amount fees sought by this Motion for the time and work spent on the Motion Subject Matter by the Firm." (Id. at. ¶ 6.)

Except for the deductions above and the time LORT spent on the instant motion discussed below, the Court has not found Plaintiff's counsel's representations regarding the time the firm spent prosecuting any of the PC claims erroneous or otherwise unreasonable. Therefore, the Court denies Eshak's request for a 50 percent reduction.

For those reasons,  
the Court deducts only \$10,152.92 from the requested PC 496(c) attorney fees.

#### PC 502(e)(2) Attorney Fees

Plaintiff's Notice of Motion also stated that he seeks PC 502(e)(2) attorney fees of \$52,837.47, arguing that he was the prevailing party under the ninth (9th) cause of action for computer fraud. (Lan Motion, p. 15:25-28.)

As the Court's SOD noted, under the California Comprehensive Computer Data Access and Fraud Act (the "Act"), "any person who commits any of the following acts is guilty of a public offense: (1) Knowingly accesses and without permission alters, damages, deletes, destroys, or otherwise uses any data, computer, computer system, or computer network in order to either (A) devise or execute any scheme or artifice to defraud, deceive, or extort, or (B) wrongfully control or obtain money, property, or data. (2) Knowingly accesses and without permission takes, copies, or makes use of any data from a computer, computer system, or computer network, or takes or copies any supporting documentation, whether existing or residing internal or external to a computer, computer system, or computer network. (3) Knowingly and without permission uses or causes to be used computer services. (4) Knowingly accesses and without permission adds, alters, damages, deletes, or destroys any data, computer software, or computer programs which reside or exist internal or external to a computer, computer system, or computer network...(6) Knowingly and without permission

provides or assists in providing a means of accessing a computer, computer system, or computer network in violation of this section. (7) Knowingly and without permission accesses or causes to be accessed any computer, computer system, or computer network....” (Pen. Code, § 502, subd. (c).)

The Act specifically provides that a person injured by a violation of the Act may bring a civil action: “In addition to any other civil remedy available, the owner or lessee of the computer, computer system, computer network, computer program, or data who suffers damage or loss by reason of a violation of any of the provisions of subdivision (c) may bring a civil action against the violator for compensatory damages and injunctive relief or other equitable relief.” (Pen. Code, § 502, subd. (e)(1).)

“Section 502, subdivision (e)(2) [then] states that in ‘any action brought pursuant to this subdivision the court may award reasonable attorney’s fees.’” (Hay v. Marinkovich (2025) 108 Cal.App.5th 707, 719.)

During trial, the Court stated the following findings and conclusions. “Plaintiff’s ninth cause of action for computer fraud in violation of Penal Code §502(c) and (e) is based on [Eshak’s] alleged accessing of iLab’s computer system without permission after February 2017.” (5/29/26 SOD, p. 45:14-16.) “Plaintiff ha[d] established, by a preponderance of the evidence, that Eshak remotely accessed iLab’s computer systems in August 2017 without authority or permission after his June 13, 2017 termination from his pharmacy and administrative positions. Eshak remotely accessed iLab’s computer systems and deleted prescription financial data using his login credentials, as alleged in paragraphs 122 and 123 of the SAC. There was ample evidence presented to support [that] conclusion. (See Exhibits 389, 385,442 and 1654).” (5/29/26 SOD, p. 45:17-22.) However, “Plaintiff failed to present direct evidence of any actual damages sustained as a result of Eshak’s unauthorized computer access after his termination. Plaintiff only presented evidence of legal fees and forensic costs incurred to investigate this claim.” (5/29/26, p. 45:23-25.) Although Plaintiff had failed to prove compensatory damages, the Court stated that it will nevertheless “consider Plaintiff’s associated costs and fees [under PC 502],” “[w]hich Plaintiff may submit in connection with [the] cost bill.” (5/29/26, p. 46:7-9.)

Eshak now challenges Plaintiff’s requested attorney fees of \$52,837.47 under PC 502(e)(2), arguing that: “Just as a fraud

plaintiff cannot prevail without resulting damage, Lan could not prevail on his section 502(e)(1) claim merely by proving that Eshak accessed RX30 without permission.” (Opposition, p. 14:14-16.)

However, there is nothing in the language of PC 502(e)(2) that limits recovery of attorney fees to proving compensatory damages. As stated above, the statute only states: “In any action brought pursuant to this subdivision the court may award reasonable attorney’s fees.” (See *Cornette v. Department of Transp.* (2001) 26 Cal.4th 63, 73–74 [“A court may not rewrite a statute, either by inserting or omitting language, to make it conform to a presumed intent that is not expressed”]; *Hay v. Marinkovich* (2025) 108 Cal.App.5th 707, 719 [citing the same law when discussing PC 502(e)(2)].) Here, the SOD noted that “Plaintiff ... [had] presented evidence of legal fees and forensic costs incurred to investigate this claim.” (5/29/26, p. 45:24-25.)

Therefore, to the extent Eshak is asking the Court to deny all fees associated with Plaintiff’s PC 502(e)(2) claim, that request is denied.

Eshak argues in the alternative as follows: “If the Court nevertheless finds a fee entitlement, recoverable work must be confined to the discrete RX30 claim: the August 2017 access, prescription reversals, forensic investigation, RX30 witnesses and PMK discovery, and related trial proof. Lan’s own declaration identifies those tasks separately. (Lewin Decl. ¶¶ 11–13.) The audit identifies two unrelated employment-agreement entries totaling \$74 and eight mixed entries totaling \$13,488.50 for whole-case depositions, witness and exhibit preparation, mediation, trial preparation, and trial attendance. Excluding the unrelated entries and reducing the mixed entries by 50 percent reduces the request by \$6,818.25, to no more than \$46,019.22. (Davis Decl. ¶ 7, Ex. A.)” (Opposition, p. 16:15-23.)

In reply, Plaintiff’s counsel, Attorney Lewin, concedes that the \$74 for the employment-agreement entries was a mistake. (Reply, Lewin Decl., ¶ 3.)

Accordingly, the Court deducts \$74 from Plaintiff’s requested PC 502 attorney fees. However, the Court denies the request to reduce the remaining PC 502 attorney fees by 50 percent.

For those reasons, the Court only deducts \$74 from the requested PC 502 attorney fees.

#### Attorney Fees for Plaintiff's Instant Motion

Lastly, Plaintiff seeks additional attorney fees of \$5,425 for time counsel spent reviewing the opposition and drafting the reply. Counsel testifies that he spent 0.4 hours reviewing the opposition and 20.45 hours drafting the reply at his billing rate of \$500 per hour (equals \$10,425), but that the moving papers had already requested \$5,000 of those costs. (Reply, Lewis Decl., ¶¶ 5-6.) Therefore, the reply now seeks the remainder of those fees.

The Court finds 20.45 hours to draft the reply extremely excessive for attorneys with decades of experience. The Court finds 10 hours at Attorney Lewin's billing rate of \$500 per hour for the reply reasonable.

Therefore, the Court deducts \$5,225 from the attorney fees associated with the reply papers.

#### Total Attorney Fee Award for Plaintiff

After the deductions above, which total \$15,451.92 (\$5,225 + \$74 + \$10,152.92), from Plaintiff's requested attorney fees of \$688,202.13, and considering the length and extent of litigation through the completion of trial, the Court grants and awards Plaintiff a total lodestar and attorney fee award of \$672,750.21, with and a 10% reduction for a limited success of plaintiff's claims (\$67,275) - for a total of \$605,475.19.

#### CONCLUSION

##### Defendant Wasem

Eshak's Motion for Attorney's Fees in Sum of \$343,954.50 is DENIED without prejudice to the bankruptcy trustee's right to file a new motion for attorney's fees as the real party in interest.

##### Plaintiff Yongtong

Lan's Motion for an Award of and Entry in Judgment of Attorneys Pursuant to Penal Code §§ 496(c) and 502(e)(2) and Code of Civil Procedure §2033.420(a)

Against Defendant Wasem Eshak is GRANTED as follows. The Court awards the plaintiff a total attorney fee award of \$605,475.19. The plaintiff is ordered to file and serve a proposed order within five (5) days of this ruling.